

Unilateral Orders — Full Misconduct in Public Office Report

30 April – 3 June 2024 — Six iterations of the final order filed without exchange

Case references

BV20D01752 | Zahmoul v Zahmoul

Sealed Order 24 May 2024

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

SOURCE NOTE

Six iterations of the final order filed without exchange. Background of documented incapacity. MiPO identification per act.

Proceedings: BV20D01752 • 30 April – 3 June 2024 • Sealed Order 24 May 2024

Sources: Master Workbook v8 · May 2024 Email Evidence (43 records) · Sealed Order · Draft Orders ×6

PART 1 — DOCUMENTED AWARENESS: WHAT EVERY ACTOR KNEW BEFORE EACH FILING

The metrics below are drawn from Master Workbook v8 (379 records, February–May 2024). They establish one proposition: every public officer and counsel involved in the draft order process had received documented, written evidence of NZ's incapacity, welfare disclosures, and participation requests before each unilateral filing.

Metric	Count	Source
Total records (Feb-May 2024)	379	Master Workbook v8
NZ outbound communications to court, counsel, ministers	268	Master Workbook v8
MPS enforcement requests (W's own count, 29 May 2024)	72+	Master Workbook v8
Welfare / hardship disclosures (hunger, hospital, £0)	28	Master Workbook v8
PARTICIPATION-DENIED records tagged in workbook	125	Master Workbook v8
Records forwarded to MacDonald J (confirmed by Karen)	64	Master Workbook v8
WILFUL-NEGLECT records tagged	77	Master Workbook v8
RECKLESS-INDIFFERENCE records tagged	59	Master Workbook v8
ABUSE-OF-PROCESS records tagged	53	Master Workbook v8
Records copied to Campbell KC during proceedings	59	Master Workbook v8
PTSD / trauma mentions in précis	8	Master Workbook v8
Hospital / cardiac records	7	Master Workbook v8

1.1 — Actor Awareness: Who Knew What at Each Filing Date

Actor	30 Apr 1st Order	3 May 3rd Order (Para 34)	14 May 5th Order	24 May Sealed	Welfare Disclosures Received	Confirmed Forwarded to Judge	Tag
Alexis Campbell KC (29 Bedford Row, H's Counsel)	Filed 1st order same minute Brent released.	Filed 13:08. Para 34 inserted 15:55 — 1 min after NZ emails Lord Chancellor. Knew about D50K.	Filed stating "no substantive response" — NZ in hospital with £120. Not disclosed to court.	Acknowledged. Filed slip rule 29 May without consulting NZ.	3 direct welfare disclosures during draft order period.	Via Karen / Foxwell.	ABUSE OF PROCESS
MacDonald J (Family Division, High Court)	Releases Brent at 15:21. Draft circulated at 15:22.	Receives NZ's welfare + D50K + Campbell's draft simultaneously at 16:48 (Karen confirmation). Responds twice — both responses reframe NZ's argument.	Higgleton / Foxwell relay his decisions. Foxwell confirms 14/16 May emails passed to him.	Approves H's 5th draft + costs judgment simultaneously 11:28 Friday before Bank Holiday.	64 records confirmed forwarded.	Karen 17:20 (2 May); 16:48 (3 May). Foxwell 14-16 May.	WILFUL NEGLECT
Karen Selby-King (MacDonald J's clerk)	Active throughout 30 Apr.	Confirms at 16:48 Campbell's draft forwarded. NZ's letter arrives 16:54 — 6 mins later — in absent inbox. Auto-reply:	On leave. No formal cover arranged for NZ.	Returns. Transmits approved order + costs judgment simultaneously 11:28.	5 welfare disclosures received and forwarded.	Yes.	INSTITUTIONAL DEFLECTION

		off with Cohen J until 20 May.					
Clive Higgleton (Francis J's clerk, informal cover)	—	—	Relays MacDonald J 7 May: stay refused, 14 May deadline. Sets deadline the morning after NZ disclosed heart problems at 4:24am.	—	2 direct welfare disclosures including heart problems.	No formal role.	RECKLESS INDIFFERENCE
Kelly Foxwell (Moor J's clerk, informal cover)	—	—	Confirms 14/16 May emails passed to MacDonald J. Receives welfare disclosures including "hungry, no home, daughters suffering."	Present on 24 May. NMO listed — no one attends hearing.	2 welfare disclosures during cover period.	Yes.	RECKLESS INDIFFERENCE
Alex Chalk MP (Lord Chancellor)	—	Receives NZ's formal equal footing letter at 15:54 — one minute before para 34 inserted.	No response to 3 May letter. Office directs NZ to food bank on 8 May.	—	2 direct welfare disclosures .	N/A	INSTITUTIONAL DEFLECTION

PART 2 — THE SEVEN ORDERS: WHAT WAS FILED, NZ'S POSITION, MIPO IDENTIFICATION

Each order is presented against the contemporaneous evidence of NZ's incapacity. Right column identifies the MiPO offence per act. Record numbers refer to May 2024 Email Evidence compilation.

Order 1 — 30 April 2024 · 15:23 · Campbell KC

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
First draft order and net effect schedule filed directly with judge via Karen. One minute earlier at 15:21 MacDonald J released NZ's barrister Brent Molyneux KC: "the court does not require and is not expecting Mr Molyneux to be involved any further." [Record 1] [Record 2] "The judge has asked for this document to be sent to him on 3 May 2024." Filed without exchange with NZ.	• LiP as of 15:21 — same minute as first draft circulated. • MPS ceased since February 2024. • No income, no legal representation, no guidance on draft order process. • 22+ disability references from trial attendance notes on record. • CLAAS clinical warning before court. Workbook tags: PARTICIPATION-DENIED · PART3A · WILFUL-NEGLECT	MacDonald J — WILFUL NEGLECT: FPR r.1.1 duty to ensure equal footing engaged at the moment of Brent's release. No Part 3A assessment at LiP transition. Proceedings initiated on H's timetable without any step to address the immediate inequality. Campbell KC — ABUSE OF PROCESS: Draft not exchanged with NZ before filing. BSB Code rCD6: must not take unfair advantage of the opposite party.

Order 2 — 2 May 2024 · 16:59 · Campbell KC

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
Second version filed with judge via Karen. Filed on a day when NZ sent 23 documented communications to court, two KCs, and Lord Chancellor disclosing acute incapacity. Karen confirmed at 17:20: ALL NZ's emails forwarded to MacDonald J. Campbell filed 21 minutes before that confirmation.	00:25 — D50K filed. 04:00 — Deteriorating health disclosed to court: weight loss, insomnia, anaemia. Multiple communications: BSB query to Allen KC; formal opposition to unilateral submission; Lord Chancellor at 11:35pm. 17:20 — Karen confirms all 23 emails forwarded to judge.	Campbell KC — ABUSE OF PROCESS: Files while 23 welfare communications pending before same tribunal. Allen KC (Joint Head, 29BR) has deflected BSB regulatory question. Campbell proceeds. MacDonald J — WILFUL NEGLECT: Receives simultaneously: D50K application + 23 welfare disclosures + Campbell's draft. Takes no action on D50K or welfare disclosures.

★ Order 3 — 3 May 2024 · 13:08 + 15:55 · PARA 34 INSERTED (Centrepiece Act)

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
13:08 — Campbell files H's full package: draft order, net effect, costs submissions,	13:59 — [Record 7] <i>"I need to eat; I am hungry and I have anaemia."</i> 15:54 — Lord	★ CENTREPIECE ACT Campbell KC — ABUSE OF PROCESS: Para 34 extinguishes

anonymisation proposals. [Record 5] 15:55 — ONE MINUTE after NZ emails Lord Chancellor at 15:54, Campbell re-files. Bubble comment: <i>"New to deal with unpaid historic periodical payments."</i> [Record 9] PARA 34: "Any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders are hereby remitted." D50K application (filed 2 May, fee paid 9 May) was live on the record. Not disclosed by Campbell in her covering note. No application to vary MPS order. No notice to NZ.	Chancellor: <i>"Why is the court knowingly keeping me in a position which is unequal?"</i> [Record 8] 15:55 — Para 34 inserted ONE MINUTE later. 16:48 — Karen forwards Campbell's draft to judge. 16:54 — NZ's equal footing letter lands in Karen's ABSENT inbox. Not forwarded. [Record 10] MacDonald J response: <i>"the court has taken no decision that requires reasons to be given."</i> JR foundation record.	NZ's live D50K enforcement application — without notice, without hearing, without any application to vary the MPS order — with knowledge of the application, NZ's Lord Chancellor letter one minute earlier, and her starvation disclosure at 13:59. One-minute timing has no innocent explanation. MacDonald J — WILFUL NEGLECT: Receives simultaneously at 16:48: D50K + NZ's welfare disclosures + Campbell's para 34. Accepts without hearing. Does not notify NZ. Does not address D50K. Responds twice on 3 May — both responses reframe NZ's argument to avoid giving reasons. AG's Reference — all four elements: 1. Public officer ✓ 2. Duty ✓ (FPR r.1.1, r.18.10) 3. Wilful ✓ (two written responses; 16:48 confirmation) 4. Serious ✓ (live application extinguished; all MPS arrears cancelled; NZ disclosing starvation).
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Order 4 — 3 May 2024 · 16:56 · Campbell KC

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
Same order as 3rd filing, without visible tracked changes. Filed one hour after para 34 insertion. 4pm deadline has passed.	Formal stay application made. Asked for correct form. No response. Equal footing submissions sitting in Karen's absent inbox since 16:54. No food. No accommodation. No clerk responding.	MacDonald J — REASONS REFUSED: 4pm deadline passes. Stay application unanswered. No reasons for refusing equal footing. No guidance on which form to use. Proceedings continue solely on H's submissions.

★ Order 5 — 14 May 2024 · 14:44 · FIVE MATERIAL AMENDMENTS

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
[Record 20] "We have not had any substantive response to our draft order"	[Record 21] <i>"I am in hospital, I cannot do this and I don't understand what it is."</i> [Record	★ SECOND MOST SERIOUS ACT Campbell KC — ABUSE OF PROCESS + WILFUL

<i>from Mrs Zahmoul."</i> Does not mention NZ is in hospital with £120. Amendment 1 — Para 35: Formal pension sharing order framework removed for £2.9m pension assets. Replaced with voluntary undertaking — no enforcement mechanism. Amendment 2 — Para 38: NZ removed from joint governance of £700,000 education fund. H given sole conduct. Campbell's reason: NZ considers H's correspondence "coercive and controlling." NZ's own domestic abuse disclosure used to remove her governance right. Amendment 3 — Para 43 deleted: Protection preventing H from obtaining decree absolute before pension sharing orders implemented — removed. Campbell's note: "<i>H fears W will use to block pension arrangements.</i>" Amendments 4 & 5 — Pension structure recalculation and Malta pension deductions restructured.	22] "<i>I am £120 in my account. My daughter is stuck in Boston without money to come back. I have severe anaemia and heart issues... This is abusive and coercive. I am in hospital.</i>" [Record 23] 4pm deadline: "<i>I HAVE NOT BEEN ABLE TO DRAFT OR REVIEW ANY DOCUMENT. THE JUDGEMENT IS NOT AGREED. THE ORDER IS NOT AGREED.</i>" Copied to US State Department. Deadline set by Higgleton on 7 May — morning after NZ disclosed heart problems at 4:24am. No judge identified to NZ at time of deadline.	NEGLECT: Five material amendments without notice or input while NZ was hospitalised. Campbell uses NZ's domestic abuse disclosure to justify para 38 amendment — demonstrating knowledge of her vulnerability and deliberate exploitation of it. MacDonald J — WILFUL NEGLECT: Accepts all five amendments without requiring exchange, without extending time, without addressing NZ's incapacity. Foxwell confirms emails forwarded. Judge proceeds. Higgleton — RECKLESS INDIFFERENCE: Sets 14 May 4pm deadline on 7 May — morning after NZ disclosed heart problems. No Part 3A assessment. No extension. Consequences: £2.9m pension entitlement unenforceable; £700,000 education fund under H's sole control; decree absolute protection removed. NZ has received nothing to date.
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★ Order 6 — 24 May 2024 · 11:28 · FINAL ORDER APPROVED + COSTS JUDGMENT SIMULTANEOUSLY

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
[Record 36] Karen transmits approved order to Campbell as primary recipient. NZ copied as afterthought. "<i>I have asked the RCJ urgent orders team to draw, seal and serve.</i>" [Record 37] Costs judgment transmitted at exactly the same minute — 11:28. Both simultaneously without prior notice to NZ. TIMING: Friday before three-day Whitsun Bank Holiday.	[Record 39] NZ formally rejects costs judgment within 28 minutes: "<i>This is not accepted and agreed. I have not had legal representation and I have not had equal footing.</i>" Joins NMO video hearing at 2pm. Finds no one. In Gloucestershire. No food. No accommodation. Third day of hunger since 17 May. [Record 42 — 29 May] "<i>This is the 72nd time I have requested enforcement of</i>	MacDonald J — ABUSE OF PROCESS: Simultaneous transmission of final order and costs judgment on Friday before Bank Holiday eliminates practical ability to challenge either document before the weekend. NMO hearing listed same day — no one attends. Safety application abandoned over Bank Holiday. Sealed order contains: Para 34 (all MPS arrears cancelled); Para 35

Any urgent challenge structurally impossible for four days. NMO hearing same day: court lists at 2pm. NZ joins video link. Finds no one. Safety risk unaddressed over Bank Holiday.	the MPS." £89 bank balance.	(£2.9m pensions — voluntary undertaking only); Para 38 (£700k education fund — H sole control); all five 14 May amendments locked in; D50K application: never determined.
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Order 7 — 29 May / 3 June 2024 · Slip Rule Amendment

Campbell KC's Act — What Was Filed	NZ's Position — Background Evidence	MiPO Offence Identified
[Record 41] Campbell identifies cross-referencing error in her own unilateral draft. Applies under slip rule without consulting NZ. "This is not a substantive change."	[Record 42] <i>"This is the 72nd time I have requested enforcement of the MPS."</i> £89 bank balance. [Record 43] <i>"Please advise if there is a form I must complete for an extension."</i> The same question NZ asked on 3 May. Never answered.	Campbell KC — PARTICIPATION-DENIED: Slip rule amendment to an order of Campbell's unilateral drafting applied without consulting NZ. Pattern of unilateral conduct continues after sealing. The error went undetected because NZ was excluded from the drafting process.

PART 3 — WHAT THE SEALED ORDER CONTAINS AND WHAT NZ HAS RECEIVED

Sealed Order Provision	What Was Done / Removed	Consequence
Para 34 — MPS arrears	All MPS arrears under any previous interim order cancelled by a single unnumbered clause in Campbell's draft. No application. No hearing. No notice. D50K application (filed 2 May, fee paid 9 May) never determined — extinguished by this clause.	MPS was NZ's income for living expenses and intended source of legal fees for the post-trial period. Arrears permanently cancelled. Enforcement mechanism closed.
Para 35 — Pension sharing (£2.9m)	Formal pension sharing orders replaced with voluntary undertakings. Fidelity, Goldman Sachs, Malta (Tirreme) pensions affected. No court order to compel compliance. No timeline. No consequence for non-transfer.	£2.9m pension entitlement rendered unenforceable. No transfers made to date. No mechanism to compel performance.
Para 38 — Education fund (£700,000)	Original draft required joint signatures to draw from fund. Struck through in Campbell's 14 May filing. NZ removed from	£700,000 education fund under H's sole control. NZ cannot access, verify, or participate in management.

	governance. H given sole conduct. Stated justification: NZ considers H's correspondence coercive and controlling — her own domestic abuse disclosure used to remove her governance right.	
Para 41 (formerly 43) — Decree absolute protection deleted	Draft originally required 28-day wait after pension sharing orders before either party could apply for decree absolute. Deleted at H's request. Campbell's note: " <i>H fears W will use to block pension arrangements.</i> "	H may obtain final divorce without pension transfers being implemented. The only leverage NZ had over pension implementation removed without her knowledge.
D50K Application — not determined	Filed 2 May 2024 at 00:25. Fee £58 paid 9 May. Received by judge confirmed 2 May at 17:20. Never listed. Never determined. Never refused with reasons. Extinguished by para 34.	A properly filed court enforcement application with paid fee, confirmed received by the judge, was extinguished by the opposing party's draft and accepted by the judge without determination.
What NZ has received (22 months after final order sealed)	—	ZERO. No MPS arrears. No pension transfers. No education fund access. NZ exited BV20D01752 with £89 in her bank account. She left without participation measures, without income, and without understanding of what had happened to her proceedings.

PART 4 — MIPO ANALYSIS: AG'S REFERENCE (NO 3 OF 2003) — FOUR ELEMENTS MAPPED TO FACTS

Subject	1. Public Officer + Duty	2. Wilful Breach (Knowledge + Act)	3. No Reasonable Excuse	4. Serious Enough
MacDonald J (Family Division, High Court)	✓ High Court judge. FPR r.1.1 (equal footing); r.3.8–3.10 (Part 3A review); r.4.1 (case management); duty to determine live applications. Schedule 4 para 17 Public Office Accountability Bill confirms judges	✓ Knowledge established: Karen's 17:20 confirmation (2 May); Foxwell confirmations (14–16 May). Two written responses on 3 May prove active engagement — not passive absence. Accepts	✓ Absent. D50K fee paid. Hearing capable of being listed. Part 3A assessment capable of being conducted. Extension capable of being granted. FPR r.4.1 available at all times. None used.	✓ A High Court judge, aware of a disabled party's incapacity and domestic abuse history, permitted six successive unilateral submissions from opposing counsel to determine her financial

	are holders of public office.	all 6 unilateral submissions. Does not determine D50K. Reframes NZ's Part 3A argument twice to avoid giving reasons. Active deflection.		settlement without her participation. Judgment contains zero disability references. NZ has received nothing 22 months later.
Alexis Campbell KC (29 Bedford Row, H's Counsel)	✓ Officer of the court. BSB Code rCD6: must not take unfair advantage. rC3: not to mislead the court. Duty of candour to tribunal.	✓ Para 34 inserted with knowledge of D50K (in same email chain confirmed forwarded to judge). 14 May filing states "no substantive response" without disclosing NZ was hospitalised. Uses NZ's domestic abuse disclosure to justify para 38. One-minute timing on 3 May cannot be explained as coincidence.	✓ Absent. Could have served draft on NZ and awaited response; disclosed D50K to judge; made formal application to vary MPS order; sought judicial directions on exchange. None taken across six filings.	✓ Counsel for H files para 34 one minute after NZ escalates to Lord Chancellor. Weaponises domestic abuse disclosure in para 38. Files five material amendments while NZ is hospitalised. Requires post-sealing slip rule correction to own unilateral draft. Pattern across 35 days.
Clive Higgleton (Francis J's clerk, informal cover)	✓ Court officer exercising public functions on behalf of MacDonald J. No formal relationship with BV20D01752.	✓ Sets 14 May 4pm deadline on morning of 7 May. NZ disclosed heart problems at 4:24am same morning — hours before deadline imposed. No medical consideration. No Part 3A assessment. No extension.	✓ Absent. Could have sought judicial guidance before imposing deadline on a litigant who had disclosed cardiac symptoms four hours earlier.	Arguable — reckless indifference threshold met. Imposes court deadline on disabled hospitalised LiP hours after cardiac disclosure. Degree of seriousness may be arguable but reckless indifference element is clearly met.

SUMMARY FOR INVESTIGATING OFFICERS

Between 30 April and 3 June 2024, H's counsel Alexis Campbell KC filed seven versions of the final order in BV20D01752 — six substantive drafts and one slip rule amendment — directly with MacDonald J, without exchange with NZ. At every stage NZ was a litigant in

person with diagnosed autism and PTSD, no legal representation, no MPS income, no food, and no accommodation. At every stage she communicated her incapacity in writing to named court officials who confirmed receipt to the judge.

The Master Workbook records 72+ documented MPS enforcement requests, 28 welfare disclosures, 125 PARTICIPATION-DENIED records, and 64 records confirmed forwarded to MacDonald J.

The third order on 3 May inserted paragraph 34 — extinguishing all MPS arrears and NZ's live D50K enforcement application — one minute after she wrote to the Lord Chancellor. The fifth order on 14 May contained five material amendments: removal of her governance of a £700,000 education fund, conversion of £2.9 million in pension entitlements to unenforceable voluntary undertakings, and deletion of the protection against H obtaining a decree absolute before pensions were transferred. The justification for the education fund amendment was NZ's own domestic abuse disclosure. The final order was sealed simultaneously with the costs judgment on a Friday before a three-day Bank Holiday.

NZ exited BV20D01752 with £89 in her bank account. She was left without participation measures, without income, and without understanding of what had happened to her proceedings. She has received nothing under the final order as of 15 March 2026. The four elements of misconduct in public office under AG's Reference (No 3 of 2003) [2004] EWCA Crim 868 are satisfied in respect of MacDonald J (wilful neglect) and Alexis Campbell KC (abuse of process). The evidence is contemporaneous, documented, and in multiple cases acknowledged in writing by the officers themselves.

EVIDENCE AVAILABILITY

The complete open correspondence and raw email evidence for the period February to June 2024 is annexed to this report and archived in full on the public archive: **github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive**.

All 379 records referenced in the Master Workbook are available for forensic inspection. The records include outbound correspondence from NZ to the court, opposing counsel, named clerks, the Lord Chancellor, and parliamentary recipients, together with all inbound responses (and the absence thereof) across the 28 February to 10 June 2024 window.